

Oversight and Accountability of Mass Surveillance Technologies within the U.S.

Intelligence Community

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INT 440 – Legal and Ethical Issues in Intelligence

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March 3, 2026

Abstract

Mass surveillance technologies within the United States intelligence community raise fundamental constitutional concerns about executive authority and meaningful oversight. After the September 11 attacks, Congress would expand surveillance powers through amendments to the Foreign Intelligence Surveillance Act and the USA Patriot Act. This would enable large-scale metadata collection and digital monitoring. Although these authorities were legally authorized, their scope and secrecy directly challenge the Fourth Amendment's protections and separation of powers principles. Oversight mechanisms exist through congressional committees, judicial review and later statutory reforms such as the USA FREEDOM Act. However, Structural secrecy and executive control over classified information limits the practical strength of these safeguards. So, surveillance authority currently rests on firm legal grounds, but without any active or independent constraint these expanded powers risk becoming permanent.

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Mass surveillance today is not merely a technical intelligence capability anymore; it is a test of whether institutional safeguards can restrain that power. Intelligence agencies today possess the ability to collect and analyze massive volumes of data; a significant amount of these abilities were granted after the September 11 attacks. The timing for these changes made operational sense. Intelligence reform had to prioritize integration, speed and expanded data sharing to prevent another catastrophic failure (Rosenbach et al., 2010). At the same time, expansions of authority that are enacted during periods of crisis are known to frequently recalibrate the balance between liberty and security in ways that endure long after the emergency subsides (Herman, 2011). Oversight must therefore operate as an active constraint rather than a procedural requirement as once these surveillance powers are expanded, they tend to persist.

Legal Authority and Structural Power

Modern surveillance authority rests on the powers granted by the Foreign Intelligence Surveillance Act of 1978 (50 U.S.C. § 1801, 1978) and amendments enacted through the USA PATRIOT Act (2001). Section 215 authorized the bulk collection of telephone metadata under orders issued by the Foreign Intelligence Surveillance Court (FISC). Later these authorities would be modified under the USA FREEDOM Act (2015), which restricted this bulk metadata collection and introduced additional procedural safeguards. When surveillance operates with clear congressional authorization, executive authority stands on firmer constitutional ground established under *Youngstown Sheet & Tube Co. v. Sawyer* (1952). While statutory support does strengthen executive power, this does not mean it should remove the need for meaningful oversight. The Fourth Amendment protects against unreasonable searches and seizures.

Historically, those constitutional protections have been limited when national security is invoked. During *Schenck v. United States* (1919), the Court upheld restrictions on speech during wartime, reinforcing that rights are not absolute under claims of urgent threats. This becomes particularly an issue when emergency reasoning starts to become embedded in long-term policy without sustained reassessment.

Oversight in Theory Vs. Oversight in Practice

Oversight of intelligence surveillance operates through congressional intelligence committees, inspector generals, executive compliance offices and the FISC. Structurally the system reflects a separation of powers design under the guidance of FISA. In practice, however, oversight depends heavily on the information that is controlled by the executive branch. The Post-9/11 reform would centralize the intelligence coordination under the Director of National Intelligence in efforts to eliminate fragmentation and improve information sharing (Rosenbach et al., 2010). While centralization did improve operational efficiency it did so at the cost of concentrating authority. This further increased the importance of independent review. When oversight bodies rely on classified briefings and limited disclosure, then their scrutiny is shaped by the very branch they are meant to monitor. This can be seen by the surveillance programs authorized under Section 215 which collected metadata on millions of individuals not just ones suspected of wrongdoing. So even when conducted in regard to judicial orders, bulk data collection alters the scale of government visibility into private life. The central question moves from being just about legality but about the scale of these operations.

Ethical Dilemma of Mass Data Collection

Mass surveillance directly impacts individual privacy, expands the scale of government monitoring and raises questions about democratic accountability. Metadata aggregation allows

for pattern analysis which can reveal associations, affiliations and behavioral habits. Also, technological capacity has greatly expanded beyond what earlier legal doctrines could have anticipated (Herman, 2011). Ethical restraint requires that collection be narrowly tailored and deemed necessary. Government monitoring must require that intrusions be correlated to an actual threat. However, bulk collection presumes relevance even before suspicion could be raised. When surveillance encompasses large segments of the population there must be equal justification for this surveillance. Preventing intelligence failures does not justify indefinite expansion of monitoring authority (Rosenbach et al., 2010). Democratic legitimacy ultimately depends on informed oversight. The USA FREEDOM Act did introduce limited transparency reforms and allowed outside legal experts to participate in certain FISC proceedings. However, core legal interpretations remain classified, which constrains public accountability when the scope of authority is not fully visible.

Structural Accountability Gaps

Formal oversight mechanisms do not automatically ensure meaningful accountability. Congressional committees operate within classified environments and limited membership. Judicial review under FISA has historically taken place without any meaningful opposing argument. Standing doctrines frequently prevent affected individuals from even challenging surveillance programs directly. This structural secrecy creates an informational asymmetry, where the executive branch controls operational details, legal interpretation and classification decisions. As a result, oversight bodies cannot effectively constrain what they cannot fully examine. This dynamic weakens the functional strength of constitutional checks. So, these expansions of national security authorities persist until external pressure forces a recalibration

(Herman, 2011). The USA FREEDOM Act represented procedural adjustment rather than structural redesign, so surveillance capability remains expansive.

Security, Liberty and Constitutional Constraint

National security threats are real and constantly evolving. Intelligence agencies rely on large-scale data analysis to detect patterns that traditional investigative methods might miss. Failures in information integration are some of the main breakdowns that contributed to the pre-9/11 intelligence breakdown (Rosenbach et al., 2010). Constitutional governance nonetheless requires constraint, the framework in *Youngstown* underscores that executive authority must remain grounded in constitutional structure. When surveillance capability expands faster than oversight capacity then imbalance starts to emerge. Security and liberty exist in tension and oversight must therefore be continuous, adaptive and independent. Surveillance authorities should not exist indefinitely, have transparent reporting consistent with national security and must go through rigorous compliance auditing. Without sustained institutional restraint, technological capabilities risk redefining acceptable limits of government power.

Mass surveillance technologies test the resilience of constitutional oversight within a classified system. Statutory authorization under FISA and the USA PATRIOT Act provided legal foundation, which was later reformed to introduce procedural adjustments. Yet structural secrecy and executive information control limit the practical strength of oversight. Democratic legitimacy depends not solely on the existence of oversight mechanisms, but on their functional independence and transparency. Surveillance authorities must remain proportionate, periodically reassessed and constitutionally constrained if it is to preserve both national security and the liberties it seeks to defend.

References

Foreign Intelligence Surveillance Act of 1978, 50 U.S.C. § 1801 et seq. (1978).

Herman, S. (2011). *Taking liberties: The war on terror and the erosion of American democracy*.

Oxford University Press

Rosenbach, E. B., Aki Peritz, Saulino, J. J., Williams, R., Deyrup, I., & Belfer Center For

Science And International Affairs. (2010). *Trials by fire: counterterrorism and the law*.

Harvard Kennedy School, Belfer Center For Science And International Affairs.

Schenck v. United States, 249 U.S. 47 (1919). <https://www.loc.gov/item/usrep249047>

USA FREEDOM Act of 2015, Pub. L. No. 114-23, 129 Stat. 268 (2015).

<https://www.govinfo.gov/app/details/PLAW-114publ23>

Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and

Obstruct Terrorism (USA PATRIOT ACT) Act of 2001, Pub. L. No. 107–56, 115 Stat.

272 (2001)

Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579 (1952).

<https://supreme.justia.com/cases/federal/us/343/579/>